

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISIOIN
(CIVIL REVISIONAL JURISDICTION)

Present:
Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION No. 2301 of 2008

Md. Chan Miah

Petitioner.

-Versus-

Md. Bazlur Rashid and others

Opposite parties.

Mr. Md. Golam Mostafa , Advocates

For the petitioner.

Mr. Siraj Uddin Ahmed, Advocate

For the Opposite Parties.

Hard on: 22.11.2016

Judgment on: 06.12.2016

At the instance of the present plaintiff-appellant-petitioner, Md. Chan Miah, this Rule was issued calling upon the opposite party Nos. 1-7 to show case as to why the impugned Judgment and decree complained of in the petition moved in court today.

This Rule is directed against the judgment and decree dated 12.03.2008 (decree signed on 16.03.2008) passed by the learned Additional District Judge, 1st Court, Kishoreganj, in the Other Appeal No. 49 of 2004, dismissing the appeal and affirming the judgment and decree dated 30.03.2004 (decree signed on 06.04.2004), passed by the learned Assistant Judge, (In-Charge), Tarail, Kishoreganj, in Other Class Suit No. 23 of 2001 dismissing the suit for declaration of Title and further declaration that deed No. 8722 dated 12.10.1970, deed No. 1697 dated 10.04.1997 and deed No. 3178 dated 16.11.1996 are void, illegal and not binding upon the plaintiff.

The relevant facts for disposal of this rule, interalia, are that the present petitioner as the plaintiff filed other Class Suit No. 23 of 2001 in the Court of Assistant Judge, Tarail, for a declaration of title and further declaration that the deed No. 8722 dated 12.10.1970, deed No.1697 dated 10.04.1997 and the deed No. 3178 dated 16.11.1996 are void, illegal and not binding upon the plaintiff. The factual aspects of the suit are that one Sharat Chandra Chowdhury was the C.S. recorded Tenant of the suit land appertaining to Khatian No. 59 Dag No. 217 class of land pond measuring 23 decimals under the Kishoreganj Sadar. In course of succession of the said land Pulak Chandra Chowdhury sold 23 decimals of land to the present plaintiff void deed No. 731 dated 07.05.1997 and handed over the possession. The land was thereafter, excavated for making a pond. The plaintiff is other land is situated adjacent to the suit land. This suit land was purchased by the plaintiff but the defendants created some false statement of fact that the Nandail Sub-Registrar Office was burnt during the liberation was in the year of 1971 along with this documents.

The suit was contested by the defendant Nos. 2, 3 and 5-9 by filing a joint written statement denying the statements in the plaint. It is also contended that one Upendra Chandra Chowdhury sold 23 decimals of land to Motiur Rahman on 12.10.1970. Since the purchase by the said Motiur Rahman (the brother of the present defendant opposite party No.1 Bazlur Rashid) has been in possession of the suit land which is a pond and also nearby land of Dag No.213. The suit land (pond) has been recorded in the name of Motiur Rahman after fulfilling all the required formalities and Motiur Rahman paid Khajna) in favour of the government. Motiur Rahman

has been sole owner of the suit land who sold 20 decimals of land to one Mst. Momtaz Begum on 18.10.1996 and remained to be the owner of 3 decimals in the year of 1971. During the liberation war Nandail Registry Office was burnt, as such, the deeds and the records were destroyed. To keep himself safe the son of the said Upendra Chandra Chowdhury, namely, Kazal Chandra Chowdhury created a deed of gift but later another son of Upendra Chandra Chowdhury, namely, Pulak Chandra created a sale deed in favour of Motiur Rahman which was executed on 10.04.1997 and registered on 06.08.1997. The plaintiff obtained forged documents on 07.05.1997. However the said Pulak Chandra Chowdhury sworn an affidavit on 14.08.1997 in favour of the present-defendant-opposite-parties, and the present defendant opposite parties controverted other materials in the plaint.

After hearing the parties and also considering the evidence filed by the respective parties the said suit was dismissed by the learned Assistant Judge, Tarail, Kishoreganj, by his judgment and decree dated 30.03.04.

Being aggrieved the present petitioner as the appellant preferred the Title Appeal No. 49 of 2004 in the court of learned District Judge which was heard by the learned Additional District Judge, Kishoreganj on transfer who also dismissed the appeal by his judgment and decree dated 12.03.2008. Challenging the said judgment of the appellate court below this revisional application has been filed and the Rule was issued thereupon.

Mr. Md. Golam Mostafa, the learned Advocate appearing along with Mr. Abdul Malek Khan submits that the plaintiff purchased the suit land on

07. 05. 1997 vide sale deed No. 731 and he had been in possession of the suit land, the defendants only to defeat the plaintiff with a malafide intention made a deed from the same vendor on 06.08.1997 but cunningly has shown 10. 04. 1997 as the date of execution of the deed though the possession of the land has already been handed over to the plaintiff earlier but the courts below did not consider these points and illegally dismissed the suit and committed an error of law resulting in an error in the decision occasioning failure of justice.

The learned Advocate further submits that the alleged deed dated 12. 10. 1971 was never registered in Sub-Registry Office of Nandail by Upendra Chandra and the vendor had no single piece of land under the jurisdiction of Sub-Registry Office, Nandail and as such the deed is void under Section 28 of the Registration Act, taking the advantage that all the documents of Nandail Sub-Registry Office have been lost by fire, the defendant taking this advantage has created the said false and forged deed and it does not create any title over the suit land. The defendant also failed to produce original deed but the courts below did not consider this vital point and committed an error of law resulting in an error in the decision occasioning failure of justice.

The Rule has been opposed by the present opposite party Nos. 1, 2, 3, 6 and 7.

Mr. Sirajuddin Ahmed, the learned Advocate appearing for the opposite parties submits that both the courts below as the courts of fact came to a concurrent finding that the present plaintiff petitioner failed to

prove his title and possession and other prayers of the plaintiff petitioner thus, there is no necessity for interference of this court.

The learned Advocate also submits that the plaint of the suit is defective as the deeds challenged are neither in the schedule nor in the prayer of the suit and no valid cause of action has been shown for filing the suit, moreover, the record of right in S. A. and P.S. Khatian are in the name of the present defendant opposite parties. As such a plaint with the defect should not get any benefit in this revisional application.

The learned Advocate also submits that P.W-2 Md. Taher admitted the possession of the present opposite parties and defendant witnesses also deposed that the opposite parties are in possession for more then 30 years but the present plaintiff petitioner filed the suit without claiming possession therefore, this Rule is liable to be discharged. He also submits that under Section 90 of the evidence Act, a deed is presumed to be genuine, therefore, the deed dated 12.10.1970 is presumed to be genuine and the plaintiff could not rebut the presumption by adducing sufficient evidence.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application under Section 115(1) of the Code of Civil Procedure along with the annexures therein, in particular the impugned judgment and decree and also considering the lower court records it appears to me that the present plaintiff petitioner filed the title suit for a declaration of title and also for declaration that 3 deeds being deed No. 8722 dated 12.10.1997, deed No. 1697 dated 10.04.1997 and deed No. 3178 dated 16.11.1996 are forged and not binding upon plaintiff. The present plaintiff petitioner the Md. Chan

Miah, has the title on the basis of deed executed on 07.05.1997 however the present opposite parties seriously controvert the above said deed by stating that the son of Upendra Chandra Chowdhury namely, Pulak Chandra Chowdhury entered into agreement on 10.04.1997 but the said deed was registered on 06.08.1997.

It further appears that the present plaintiff petitioner filed the title suit for a declaration of a deed No. 8722 dated 12.10.1970 by filing title suit No. 23 of 2001 is burred under the provisions of the Limitation Act, because for any declaration of cancellation or declaring the documents illegal a claim must be filed a suit within 6 years. In this regard Article 120 of the limitation Act laid down stipulated period for such a claim but the present suit has been filed in the year of 2001 for declaring the sale deed of 1970 which is absolutely beyond the provision of the limitation period and no explanation is given in the plaint thereof.

I have also considered that the suit has been filed for declaration for cancellation of the above mentioned 3 deeds but without mentioning in the schedule of the plaint which makes the suit filed by the present plaintiff petitioner as a defective plaint, the plaintiff petitioner, therefore, cannot get the benefit of the defective plaint because of lack of scheduled entry for declaration.

I have also carefully considered the lower courts records which contain the exhibits filed by the parties as well as the depositions of P.Ws and D.Ws and I found that the plaintiff could not prove that he was in possession of the suit land which is a pond as these appear from the P. Ws and D.Ws. It is also surprising that the petitioner knowing fully well that

they should have claimed possession of the land but the plaint is filed without seeking any remedy for possession. From the above discussion, I am of the view that the plaintiff petitioner has failed to prove his case by a defective plaint.

Let me now examining the judgment and decree passed by the learned courts below. I really appreciate that the learned trial court has considered all the relevant facts and law as well as the evidence adduce and produce by the parties in this suit and therefore concluded to dismiss the suit on the basis of the following findings:-

“বাদী তাহার আরজীর এমন কোন দাবী ক-রন নাই যে, নালিশা ভূমির মাঠ রেকর্ড তাহার ভায়ার না-ম হইয়া-ছ। বিবাদীপক্ষ দাবী ক-রন নালিশা ভূমির মাঠ রেকর্ড মতিউর রহমান-র না-ম হইয়া-ছ। বিবাদীপক্ষ ৩১৮ নং তসদিককৃত মাঠ পরচা আদাল-ত দাখিল করিয়া-ছ যাহা সি-২ ফাইল রক্ষিত আ-ছ। এই বিষয়টি সংক্রান্ত এই পর্যন্ত যাতা আলোচনা করা হইয়াছে তাহা হইতে আদালতের সিদ্ধান্ত হইল প্র: ২, ২(ক) দালিলমূলে নালিশা জায়গায় বাদীর কোন স্বত্ত্ব স্বার্থের সৃষ্টি হয় নাই, একই সঙ্গে আদালত মনে করেন যে, প্রদ: ক, গ, ও চ চিহ্নিত দলিলত্রয় অবৈধ ও তথ্যকতা মূলে সৃজন করা হয় নাই। বাদী পক্ষের ২ নং সাক্ষী মো: তাহের জবান বন্দি-ত স্বীকার করিয়া-ছেন যে, বিগত তিন বৎসর যাবত নালিশা জায়গা বিবাদীরা দখল করি-ত-ছেন। কা-জই নালিশা জায়গায় বাদীপ-ক্ষর দখল সম্প-র্ক আর বিস্তার আ-লাচনার প্র-য়োজন আ-ছ বলিয়া আদালত ম-ন ক-রন না। পক্ষান্ত-র বিবাদীপক্ষ ৭০ ইং সনের পর হইতে নালিশা জায়গায় স্বত্ত্ববান দখলকার আছেন মর্মে দাবী ক-রন। ”

The learned appellate court below also considered all the aspect of this case and came to a conclusion to disallow the appeal on the basis of the following findings:-

“উপরোক্ত আলোচনার আলোকে দেখা যায় যে, প্রদর্শনী ২, ২(ক) দলিল মূ-ল নালিশা সম্পত্তিতে বাদীর কোন স্বত্ত্ব স্বার্থের সৃষ্টি হয় নাই। পক্ষান্ত-র বিবাদী প-ক্ষর দাখিলী প্রদর্শনী- ক, গ ও চ চিহ্নিত দলিলত্রয় অবৈধ ও চক্রান্তমূলকভা-ব সৃজন করা হয় নাই মর্মে অত্র আদালত মনে করেন। বাদীপক্ষের ১ নং সাক্ষী মো: তাহের জবানবন্দি-ত স্বীকার করিয়া-ছেন যে, বিগত ৩ বৎসর যাবৎ নালিশা ভূমি বিবাদীরা দখল করি-ত-ছ। কা-জই নালিশা ভূমি-ত বাদীপ-ক্ষর দখল সম্প-র্ক আর বিস্তারিত আ-লাচনা করার প্র-য়োজন নাই বলিয়া অত্র আদালত মনে ক-রন। বাদী আপীল্যান্ট প-ক্ষর উপস্থাপিত মৌখিক সাক্ষী ও দালিলিক সাক্ষ্য পর্যা-লাচনায় দেখা যায় যে, নালিশী ভূমি-ত বাদীর কোন স্বত্ত্ব, স্বার্থ ও দখল নাই। পক্ষান্ত-র বিবাদী রেসপন-ডন্ট প-ক্ষর উপস্থাপিত মৌখিক ও দালিলিক সাক্ষ্য দ্বারা নালিশা ভূমি-ত স্বত্ত্ব, স্বার্থ ও দখল প্রমাণিত হইয়া-ছ। বাদী আপীল্যান্ট পক্ষ তাহার মোকদ্দমা দালিলিক ও মৌখিক সাক্ষীদ্বারা প্রমান করিতে

ব্যর্থ হওয়ায় বিজ্ঞ নিম্ন আদালত বাদীর মোকদ্দমা ডিসমিস করিয়া সঠিক সিদ্ধান্তে উপনীত হইয়া-ছেন বলিয়া আমার বিশ্বাস।”

I have examined the findings of the courts below who concurrently found in favour of the present-opposite-parties and against the present-plaintiff-petitioner after considering and carefully reading the evidence, both oral and documentary of the respective parties. Therefore, I am not inclined to interfere into the judgment and decree passed by the learned appellate court below.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

Office is directed to take communicate this Judgment and order to the concerned court immediately and the office is directed to send down the Lower Court Records at once.